

Court No. - 4

Case :- WRIT - C No. - 65749 of 2014

Petitioner :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Another

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Birendra S. Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

On the request of learned counsel for the petitioner, put up on 8.12.2014 as fresh.

Order Date :- 5.12.2014

RKP

Court No. - 4

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Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Birendra S. Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the petitioners and learned Standing Counsel appearing for respondent nos. 1 and 2.

By means of present writ petition, the petitioners had prayed for quashing the impugned order dated 02.04.2014 passed by the respondent no.2 as Appellate Authority in appeal no. 1 of 2011 (Rajendra Kumar Gupta Vs. Dakshinanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioners submits that respondent no.3 is running a school namely Adarsh Shiksha Samiti and took electricity connection No. 6020/084024 of 7.5 Kilo Watt (KW). The premises of respondent no.3 was checked by the checking team on 12.08.2010 and it has been found that institution has used electricity load of 14.756 KW against the sanctioned load i.e. 7.5 KW. It had also been found that meter was tempered and in view of Section 135 of Electricity Act, a notice of provisional assessment of the sum of Rs. 2,71,476.34 was issued to the respondent no.3.

It is also apparent from the record that thereafter, the respondent no.3 filed his detailed objection dated 13.12.2010 and asked for independent checking of the meter, which was rejected vide order dated 24.02.2011 and finally in view of electricity supply code 2005 and Section 135 of Electricity Act, the assessment of Rs. 2,71,476.34 was made, and in pursuance of said assessment a demand notice under Section 3 of U.P. Government Electricity Business Institution (Recovery of Dues) Act 1958, has been issued. Against the said assessment order, the respondent no.3 has filed writ petition no. 18315 of 2011, which was disposed of vide order dated 30.03.2011 for filing an appeal.

It is also apparent from the record that respondent no.3 filed an appeal under Section 127 of Electricity Act before the respondent no.2/Additional Commissioner (Judicial-Ist), Agra Division Agra, which was allowed vide order dated 02.04.2014 in his favour and the assessment order dated 02.02.2011 and 24.02.2011 was

quashed.

Learned counsel for the petitioners submits that order impugned cannot sustained on the ground that in view of clause 5.5 of electricity supply code 2005, only after considering the objection of respondent no.3, the final assessment order has been made in the matter.

The matter requires consideration.

Issue notice to respondent no.3. Steps may be taken within a week, returnable at an early date. The respondents are allowed three weeks' time to file counter affidavit. The petitioners will have one week thereafter to file rejoinder affidavit.

List immediately thereafter.

Order Date :- 8.12.2014

VKG

Court No. - 19

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Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Birendra S. Pandey

Counsel for Respondent :- C.S.C., Bidhan Chandra Rai

Hon'ble Saurabh Shyam Shamshery, J.

1. None appeared on behalf of petitioners to press this writ petition even in revised call.
2. It appears that either the cause of action no more survives or the petitioners have lost interest in this matter or it has otherwise become infructuous and, probably for this reason, none is interested to have decided this matter on merits and that is why, counsel for petitioners is absent.
3. Dismissed. Interim order, if any, stands vacated.
4. However, in case any cause of action survives, the petitioners can move application for recall of this order.

Order Date :- 25.11.2021

Rishabh

[Saurabh Shyam Shamshery, J.]